

CLOUDFORGE ANALYTICS PLATFORM

Master Software-as-a-Service (SaaS) Terms of Service & Data Processing Terms

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1. SUBSCRIPTION & AUTHORIZED USE

Subject to timely payment of subscription fees, CloudForge grants Customer a non-exclusive, non-transferable, revocable license to access the CloudForge API and developer dashboard. Customer is responsible for all activity conducted through Customer API keys.

2. ACCEPTABLE USE & PLATFORM RESTRICTIONS

Customer shall not: (a) reverse engineer, decompile, or extract source code from the services; (b) conduct automated penetration tests or vulnerability scans without prior written authorization; (c) exceed published API rate limits (100 requests per second for Standard Tier); or (d) store or transmit malware or unlawful data.

3. BILLING, SUBSCRIPTION TIERS & PAYMENT OBLIGATIONS

Services are billed in advance on monthly or annual billing cycles. Payment is due immediately upon invoice generation. Failed charges will be retried 3 times across a 7-day grace period. Accounts with delinquent balances beyond 14 days will be automatically suspended.

4. CUSTOMER DATA OWNERSHIP & PRIVACY

As between the parties, Customer retains all intellectual property rights and title to Customer Data uploaded to the platform. CloudForge shall process Customer Data exclusively to provide the services in accordance with standard Data Protection Regulations. Customer Data is purged 30 calendar days following account termination.

5. SERVICE LEVEL AGREEMENT (SLA) & UPTIME GUARANTEE

CloudForge commits to an Monthly Uptime Percentage of 99.9% excluding scheduled maintenance windows notified 48 hours in advance.

SLA Credit Slabs: If monthly uptime falls between 99.0% and 99.89%, Customer is entitled to a 10% billing credit. If uptime drops below 99.0%, Customer is entitled to a 25% credit. Credit claims must be filed within 30 days of the affected calendar month.

6. LIMITATION OF LIABILITY & WARRANTY DISCLAIMER

TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT SHALL CLOUDFORGE BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS OR BUSINESS INTERRUPTION. CLOUDFORGE AGGREGATE LIABILITY SHALL NOT EXCEED TOTAL FEES PAID BY CUSTOMER IN THE 12 MONTHS PRECEDING THE CLAIM.

7. TERM, TERMINATION & SUSPENSION

This Agreement commences upon sign-up and continues until cancelled. Customer may cancel at any time via account settings, effective at the end of the current billing period. CloudForge reserves the right to terminate access immediately in the event of severe Acceptable Use Policy violations.